

him, his ability, parts, fitness for his place, are not to be reflected on, censured, defamed, or vilified by any other person, being allowed and stamp't with the *King's approbation*, to [139] whom only it belongs to judge of the fitness of his ministers.

And such scandalous assertions or inquiries upon the Judges of both Benches, is forbidden by the Statute of Scandalum Magnatum, 2 R. 2, c. 5. Nor must we, upon supposition only, either admit Judges deficient in their office, for so they should never do any thing right; nor on the other side, must we admit them unerring in their places, for so they should never do any thing wrong.

And in that sense the saying concerns not the present case.

But if any man thinks that a person concern'd in interest, by the judgment, action, or authority exercis'd upon his person or fortunes by a Judge, must submit in all, or any of these, to the implied discretion and unerringness of his Judge, without seeking such redress as the law allows him, it is a perswasion against common reason, the received law, and usage both of this kingdome, and almost all others.

If a Court, inferiour or superiour, hath given a false or erroneous judgment, is any thing more frequent than to reverse such judgments by writs of false judgment, of error, or appeals, according to the course of the kingdome.

If they have given corrupt and dishonest judgments, they have in all ages been complain'd of to the King in the Starr-Chamber, or to the Parliament.

Andrew Horne, in his mirror of justices, mentions many Judges punish't by King Alfred before the Conquest, for corrupt judgments, and their particular names and offences, which could not be had but from the records of those times.

Our stories mention many punish't in the time of Edward the First, our Parliament Rolls of Edward the Third's time, of Richard the Second's time, for the pernicious resolutions given at Nottingham Castle, afford examples of this kind: in latter times, the Parliament Journals of 18 and 21 Jac. the judgment of the ship-mony in the time of Charles the First, question'd, and the particular Judges impeacht. These instances are obvious, and therefore I but mention them.

In cases of returns too general upon writs of habeas corpus, of many I could urge, I will instance in two only.

One Astwick brought by habeas corpus to the Kings Bench, was return'd to be committed, per Mandatum Nicholai Bacon Militis, domini Custodis Magni Sigilli Angliæ virtute ejusdam Contemptus in Curia Cancellar. facti, and was presently bail'd.

[140] One Apsley, prisoner in the Fleet, upon a habeas corpus, was return'd to be committed, per considerationem Curie Cancellar. pro contemptu eidem Curie illato, and upon this return set at liberty.

In both these cases, no inquiry was made, or consideration had, whether the contempts were to the law Court, or equitable Court of Chancery, either was alike to the Judges, lest any man should think a difference might arise thence.

The reason of discharging the prisoners upon those returns, was the generality of them being for contempts to the Court, but no particular of the contempt exprest, whereby the Kings Bench could judge, whether it were a cause for commitment or not.

And was it not as supposeable, and as much to be credited, that the Lord Keeper and Court of Chancery, did well understand what was a contempt deserving commitment, as it is now to be credited, that the Court of Sessions did understand perfectly what was full and manifest evidence against the persons indicted at the sessions, and therefore it needed not to be reveal'd to us upon the return?

Hence it is apparent, that the commitment and return pursuing it, being in it self too general and uncertain, we ought not implicitly to think the commitment was re vera, for cause particular and sufficient enough, because it was the act of the Court of Sessions.

And as to the other part, that the Court of Sessions in London is not to be resembled to other Inferiour Courts of Oyer and Terminer, because all the Judges are commission'd here (which is true) but few are there, at the same time, and as I have heard, when this tryal was, none of them were present. However persons of great quality are in the commissions of oyer and terminer, through the shires of the Kingdom, and always some of the Judges; nor doth one commission of oyer and terminer differ in its essence, nature, and power from another, if they be general commissions; but all differ in the accidents of the commissioners, which makes no alteration in their actings in the eye of law.

Another fault in the return is, that the jurors are not said to have acquitted the persons indicted, against full and manifest evidence corruptly, and knowing the said evidence to be full and manifest against the persons indicted, for how manifest soever the evidence was, if it were not manifest to them, and that they believ'd it such, it was not a finable fault, nor deserving [141] imprisonment, upon which difference the law of punishing jurors for false verdicts principally depends.

A passage in Bracton is remarkable to this purpose concerning attainting inquests. *Committit Jurator per jurium propter falsum Sacramentum, ut si ex certa scientia aliter Juraverit quam res in veritate se habuerit, si autem Sacramentum fatuum fuerit licet falsum, tamen non committit perjurium licet re vera res aliter se habeat quam juraverat, & quia jurat secundum conscientiam eo quod non vadit contra mentem. Sunt quidam qui verum dicunt. mentiendo, sed se pejerant—quia contra mentem vadunt.*

The same words, and upon the same occasion, are in effect in Fleta. *Committit enim Jurator perjurium quandoque propter falsum Sacramentum, ut si ex certa scientia aliter juraverit quam res in veritate se habuerit secus enim propter factum quamvis falsum; and lest any should think that these passages are to be understood only of jury-mens perjuries in foro conscientie, it is clearly otherwise by both those books, which shew how, by the discreet examination of the Judge, the error of the jury not wilfull, may be prevented and corrected, and their verdict rectified.*

And in another place of Bracton, in the same chapter: *Judex enim sive Justiciarius ad quem pertinet examinatio, si minus diligenter examinaverit, occasionem prebet perjurii Juratoribus.* And after,

Et si examinati cum justo deducantur errore dictum suum emendaverint, hoc bene facere possunt, ante judicium & impune, sed post judicium non sine poenâ.

After these authorities,

I would know whether any thing be more common, than for two men students, barristers, or Judges, to deduce contrary and opposite conclusions out of the same case in law? And is there any difference that two men should inferr distinct conclusions from the same testimony: Is any thing more known than that the same author, and place in that author, is forcibly urg'd to maintain contrary conclusions, and the decision hard, which is in the right? Is any thing more frequent in the controversies of religion, than to press the same text for opposite tenents? How then comes it to pass that two persons may not apprehend with reason and honesty, what a witness, or many, say, to prove in the understanding of one plainly one thing, but in the apprehension of the other, clearly [142] the contrary thing: must therefore one of these merit fine and imprisonment, because he doth that which he cannot otherwise do, preserving his oath and integrity? And this often is the case of the Judge and jury.

I conclude therefore, that this return, charging the prisoners to have acquitted Penn and Mead, against full and manifest evidence first and next, without saying that they did know and believe that evidence to be full and manifest against the indicted persons, is no cause of fine or imprisonment.

And by the way I must here note, that the verdict of a jury, and evidence of a witness are very different things, in the truth and falshood of them: a witness swears but to what he hath heard or seen, generally or more largely, to what hath fallen under his senses. But a jury-man swears to what he can inferr and conclude from the testimony of such witnesses, by the act and force of his understanding, to be the fact inquired after, which differs nothing in the reason, though much in the punishment, from what a Judge, out of various cases consider'd by him, inferrs to be the law in the question before him. Therefore Bracton,

Et licet narratio facti contraria sit Sacramento, & dicto præcedenti, tamen falsum non faciunt Sacramentum licet faciunt fatuum Judicium, quia loquuntur secundum conscientiam quia falli possunt in Judiciis suis, sicut ipse Justitiarius.

There is one objection which hath been made by none, as I remember, to justify this general return, I would give answer to.

A man committed for treason or felony, and bringing a habeas corpus, hath return'd upon it, that he was committed for high treason or felony; and this is a sufficient return to remand him, though in truth this is a general return: for if the specifical fact for which the party was committed, were expressed in the warrant, it might then perhaps appear to be no treason or felony, but a trespass, as in the case of *The Earl of Northumberland*, 5 H. 4, question'd for treason in raising power. The

Lords adjudg'd it a trespass ; for the powers raised were not against the King, but some subjects.

Why then by like reason may not this return be sufficient, though the fact for which the prisoners stood committed particularly express'd, might be no cause of commitment?

[143] The cases are not alike ; for upon a general commitment for treason or felony, the prisoner (the cause appearing) may press for his tryal, which ought not to be denied or delayed, and upon his indictment and tryal, the particular cause of his imprisonment must appear, which proving no treason or felony, the prisoner shall have the benefit of it. But in this case, though the evidence given were no full nor manifest evidence against the persons indicted, but such as the jury upon it ought to have acquitted those indicted, the prisoner shall never have any benefit of it, but must continue in prison, when remanded, until he hath paid that fine unjustly impos'd on him, which was the whole end of his imprisonment.

We come now to the next part of the return, viz. that the jury acquitted those indicted against the direction of the Court in matter of law, openly given and declared to them in Court.

1. The words, that the jury did acquit, against the direction of the Court, in matter of law, literally taken, and *de plano*, are insignificant, and not intelligible ; for no issue can be joyn'd of matter in law, no jury can be charg'd with the tryal of matter in law barely, no evidence ever was, or can be given to a jury of what is law, or not ; nor no such oath can be given to, or taken by, a jury, to try matter in law ; nor no attaint can lye for such a false oath.

Therefore we must take off this vail and colour of words, which make a shew of being something, and in truth are nothing.

If the meaning of these words, finding against the direction of the Court in matter of law, be, that if the Judge having heard the evidence given in Court (for he knows no other) shall tell the jury, upon this evidence, the law is for the plaintiff, or for the defendant, and you are under the pain of fine and imprisonment to find accordingly, then the jury ought of duty so to do ; every man sees that the jury is but a troublesome delay, great charge, and of no use in determining right and wrong, and therefore the tryals by them may be better abolish'd than continued ; which were a strange new-found conclusion, after a tryal so celebrated for many hundreds of years.

For if the Judge, from the evidence, shall by his own judgment first resolve upon any tryal what the fact is, and so knowing the fact, shall then resolve what the law is, and order the jury penally to find accordingly, what either necessary or convenient use can be fancied of juries, or to continue tryals by them at all?

[144] But if the jury be not oblig'd in all tryals to follow such directions, if given, but only in some sort of tryals (as for instance, in tryals for criminal matters upon indictments or appeals) why then the consequence will be, though not in all, yet in criminal tryals, the jury (as of no material use) ought to be either omitted or abolished, which were the greater mischief to the people, than to abolish them in civil tryals.

And how the jury should, in any other manner, according to the course of tryals us'd, find against the direction of the Court in matter of law, is really not conceivable.

True it is, if it fall out upon some special tryal, that the jury being ready to give their verdict, and before it is given, the Judge shall ask, whether they find such a particular thing propounded by him? or whether they find the matter of fact to be as such a witness, or witnesses have depos'd? and the jury answer, they find the matter of fact to be so ; if then the Judge shall declare, the matter of fact being by you so found to be, the law is for the plaintiff, and you are to find accordingly for him.

If notwithstanding they find for the defendant, this may be thought a finding in matter of law against the direction of the Court ; for in that case the jury first declare the fact, as it is found by themselves, to which fact the Judge declares how the law is consequent.

And this is ordinary, when the jury find unexpectedly for the plaintiff or defendant, the Judge will ask, how do you find such a fact in particular? and upon their answer he will say, then it is for the defendant, though they found for the plaintiff, or *è contrario*, and thereupon they rectifie their verdict.

And in these cases the jury, and not the Judge, resolve and find what the fact is.

Therefore alwaies in discreet and lawful assistance of the jury, the Judge his direction is hypothetical, and upon supposition, and not positive, and upon coercion.

viz. if you find the fact thus (leaving it to them what to find) then you are to find for the plaintiff; but if you find the fact thus, then it is for the defendant.

But in the case propounded by me, where it is possible in that special manner, the jury may find against the direction of the Court in matter of law, it will not follow they are therefore finable; for if an attaint will lye upon the verdict so given by them, they ought not to be fined and imprisoned by the Judge for that verdict; for all the Judges have agreed upon a [145] full conference at Serjeants Inn, in this case. And it was formerly so agreed by the then Judges in a case where Justice Hide had fined a jury at Oxford, for finding against their evidence in a civil cause. That a jury is not finable for going against their evidence, where an attaint lies; for if an attaint be brought upon that verdict, it may be affirmed and found upon the attaint a true verdict, and the same verdict cannot be a false verdict, and therefore the jury fined for it as such by the Judge, and yet no false verdict, because affirmed upon the attaint.

Another reason that the jury may not be fined in such case, is, because until a jury have consummated their verdict, which is not done until they find for the plaintiff or defendant, and that also be entred of record; they have time still of deliberation, and whatsoever they have answered the Judge upon an interlocutory question or discourse, they may lawfully vary from it if they find cause, and are not thereby concluded.

Whence it follows upon this last reason, that upon tryals wherein no attaint lies, as well as upon such where it doth, no case can be invented; wherein it can be maintained that a jury can find, in matter of law, nakedly against the direction of the Judge.

And the Judges were (as before) all of opinion, that the return in this latter part of it, is also insufficient, as in the former, and so wholly insufficient.

But that this question may not hereafter revive if possible, it is evident by several resolutions of all the Judges, that where an attaint lies, the Judge cannot fine the jury for going against their evidence or direction of the Court, without other misdemeanour.

For in such case, finding against, or following the direction of the Court barely, will not barr an attaint, but in some case the Judge being demanded by, and declaring to, the jury, what is the law, though he declares it erroneously, and they find accordingly, this may excuse the jury from the forfeitures; for though their verdict be false, yet it is not corrupt, but the judgment is to be revers'd however upon the attaint; for a man loseth not his right by the Judges mistake in the law.

Therefore if an attaint lies for a false verdict upon indictment not capital (as this is) either by the common or statute law, by those resolutions, the Court would not fine the jury in this case, for going against evidence, because an attaint lay.

[146] But admitting an attaint did not lye (as I think the law clear it did not) for there is no case in all the law of such an attaint, nor opinion, but that of Thirnings, 10 H. 4, Attaint, 60 & 64, for which there is no warrant in law, though there be other specious authority against it, toucht by none that argued this case.

The question then will be, whether before the several Acts of Parliament, which granted attaints, and are enumerated in their order in the Register, the Judge by the common law, in all cases, might have fined the jury, finding against their evidence and direction of the Court, where no attaint did lye, or could so do, yet if the statutes which gave the attaints were repeal'd.

If he could not in civil causes before attaints granted in them, he could not in criminal causes, upon indictment (wherein I have admitted attaint lies not) for the fault in both was the same, viz. finding against evidence and direction of the Court, and by the common law; the reason being the same in both, the law is the same.

That the Court could not fine a jury at the common law, where attaint did not lye (for where it did, is agreed he could not) I think to be the clearest position that ever I consider'd, either for authority or reason of law.

After attaints were granted by statutes generally; as by Westminster the First, c. 38, in pleas real, and by 34 E. 3, c. 7, in pleas personal, and where they did lye at common law (which was only in writs of assise) the examples are frequent in our books of punishing jurors by attaint.

But no case can be offer'd, either before attaints granted in general, or after, that ever a jury was punish'd by fine and imprisonment by the Judge, for not finding

according to their evidence, and his direction, until Popham's time, nor is there clear proof that he ever fined them for that reason, separated from other misdemeanor. If juries might be fined in such case before attaints granted, why not since? for no statute hath taken that power from the Judge. But since attaints granted, the Judges resolved they cannot fine where the attaint lies, therefore they could not fine before. Sure this latter age did not first discover that the verdicts of juries were many times not according to the Judges opinion and liking.

But the reasons are, I conceive, most clear, that the Judge could not, nor can fine and imprison the jury in such cases.

[147] Without a fact agreed, it is as impossible for a Judge, or any other, to know the law relating to that fact, or direct concerning it, as to know an accident that hath no subject.

Hence it follows, that the Judge can never direct what the law is in any matter controverted, without first knowing the fact; and then it follows, that without his previous knowledge of the fact, the jury cannot go against his direction in law, for he could not direct.

But the Judge, quā Judge, cannot know the fact possibly, but from the evidence which the jury have, but (as will appear) he can never know what evidence the jury have, and consequently he cannot know the matter of fact, nor punish the jury for going against their evidence, when he cannot know what their evidence is.

It is true, if the jury were to have no other evidence for the fact, but what is depos'd in Court, the Judge might know their evidence, and the fact from it, equally as they, and so direct what the law were in the case, though even then the Judge and jury might honestly differ in the result from the evidence, as well as two Judges may, which often happens.

But the evidence which the jury have of the fact is much other than that; for,

1. Being return'd of the vicinage, whence the cause of action ariseth, the law supposeth them thence to have sufficient knowledge to try the matter in issue (and so they must) though no evidence were given on either side in Court, but to this evidence the Judge is a stranger.

2. They may have evidence from their own personal knowledge, by which they may be assur'd, and sometimes are, that what is depos'd in Court, is absolutely false; but to this the Judge is a stranger, and he knows no more of the fact than he hath learn'd in Court, and perhaps by false depositions, and consequently knows nothing.

3. The jury may know the witnesses to be stigmatiz'd and infamous, which may be unknown to the parties, and consequently to the Court.

4. In many cases the jury are to have view necessarily, in many, by consent, for their better information; to this evidence likewise the Judge is a stranger.

[148] 5. If they do follow his direction, they may be attainted, and the judgment revers'd for doing that, which if they had not done, they should have been fined and imprisoned by the Judge, which is unreasonable.

6. If they do not follow his direction, and be therefore fined, yet they may be attainted, and so doubly punish'd by distinct judicatures for the same offence, which the common law admits not.

A fine revers'd in Banco Regis for infancy, per inspectionem & per testimonium del 4 fide dignorum. After upon examination of divers witnesses in Chancery, the suppos'd infant was prov'd to be of age, tempore finis levati, which testimonies were exemplified, and given in evidence after in Communi Banco, in a writ of entry in the quibus there brought. And though it was the opinion of the Court, that those testimonies were of no force against the judgment in the Kings Bench, yet the jury found, with the testimony in Chancery, against direction of the Court, upon a point in law, and their verdict after affirmed in an attaint brought, and after a writ of right was brought, and battle joyn'd.

7. To what end is the jury to be return'd out of the vicinage, whence the cause of action ariseth? To what end must hundredors be of the jury, whom the law supposeth to have nearer knowledge of the fact than those of the vicinage in general? To what end are they challeng'd so scrupulously to the array and pole? To what end must they have such a certain free-hold, and be probi & legales homines, and not of affinity with the parties concern'd? To what end must they have in many cases the view, for their exacter information chiefly? To what end must they undergo the heavy punishment of the villanous judgment, if after all this they implicitly must give

a verdict by the dictates and authority of another man, under pain of fines and imprisonment, when sworn to do it according to the best of their own knowledge :

A man cannot see by anothers eye, nor hear by anothers ear, no more can a man conclude or infer the thing to be resolv'd by anothers understanding or reasoning ; and though the verdict be right the jury give, yet they being not assur'd it is so from their own understanding, are forsworn, at least in foro conscientiæ.

[149] 9. It is absurd a jury should be fined by the Judge for going against their evidence, when he who fineth knows not what it is, as where a jury find without evidence in Court of either side, so if the jury find, upon their own knowledge, as the course is if the defendant plead solvit ad diem, to a bond prov'd, and offers no proof. The jury is directed to find for the plaintiff, unless they know payment was made of their own knowledge, according to the plea.

And it is as absurd to fine a jury for finding against their evidence, when the Judge knows but part of it ; for the better and greater part of the evidence may be wholly unknown to him ; and this may happen in most cases, and often doth, as in *Graves and Shorts case*.

Error of a judgment in the Common Bench, the error assign'd was, the issue being, whether a feoffment were made? and the jurors being done together to conferr of their verdict, one of them shew'd to the rest an escrow pro parentibus, not given in evidence by the parties per quod, they found for the demandant upon demurrer adjudg'd no error ; for it appears not to be given him by any of the parties, or any for them, it must be intended he had it as a piece of evidence about him before, and shew'd it to inform himself and his fellows, and as he might declare it as a witness, that he knew it to be true. They resolv'd, if that might have avoided the verdict, which they agreed it could not, yet it ought to have been done by examination, and not by error.

That decantatum in our books, ad quæstionem facti non respondent iudices, ad quæstionem legis non respondent juratores, literally taken is true : for if it be demanded, what is the fact? the Judge cannot answer it : if it be asked, what is the law in the case, the jury cannot answer it.

Therefore the parties agree the fact by their pleading upon demurrer, and ask the judgment of the Court for the law.

In special verdicts the jury inform the naked fact, and the Court deliver the law ; and so is it in demurrers upon evidence, in arrest of judgments upon challenges, and often upon the Judges opinion of the evidence given in Court, the plaintiff becomes nonsuit, when if the matter had been left to the jury, they might well have found for the plaintiff.

[150] But upon all general issues ; as upon not culpable pleaded in trespass, nil debet in debt, nul tort, nul disseisin in assize, ne disturba pas in quare impedit, and the like ; though it be matter of law whether the defendant be a trespassor, a debtor, disseisor, or disturber in the particular cases in issue ; yet the jury find not (as in a special verdict) the fact of every case by it self, leaving the law to the Court, but find for the plaintiff or defendant upon the issue to be tryed, wherein they resolve both law and fact complicately, and not the fact by it self ; so as though they answer not singly to the question what is the law, yet they determine the law in all matters where issue is joyn'd, and tryed in the principal case, but where the verdict is special.

To this purpose the Lord Hobart in *Needlers case* against *The Bishop of Winchester*, is very apposite—legally it will be very hard to quit a jury that finds against the law, either common law, or several statute law, whereof all men were to take knowledge, and whereupon verdict is to be given, whether any evidence be given to them or not. As if a feoffment or devise were made to one imperpetuum, and the jury should find cross, either an estate for life, or in fee-simple against the law, they should be subject to an attain, though no man informed them what the law was in that case.

The legal verdict of the jury to be recorded, is finding for the plaintiff or defendant, what they answer, if asked to questions concerning some particular fact, is not of their verdict essentially, nor are they bound to agree in such particulars ; if they all agree to find their issue for the plaintiff or defendant, they may differ in the motives wherefore, as well as Judges, in giving judgment for the plaintiff or defendant, may differ in the reasons wherefore they give that judgment, which is very ordinary.

I conclude with the statute of 26 H. 8, c. 4, that if any jurors in Wales do acquit

any felon, murderer, or accessary, or give an untrue verdict against the King, upon the tryal of any traverse, recognizance, or forfeiture, contrary to good and pregnant evidence ministred to them by persons sworn before the Kings Justiciar. That then such jurors should be bound to appear before the Council of the Marches, there to abide such fine or ransome for their offence, as that Court should think fit.

[151] If jurors might have been fined before, by the law, for going against their evidence in matters criminal, there had been no cause for making this statute against jurors, for so doing in Wales only.

Objections out of the Ancient and Modern Books.

1. A juror kept his fellows a day and night, without any reason or assenting, and therefore awarded to the Fleet.

This book rightly understood is law, that he staid his fellows a day and a night, without any reason or assenting, may be understood, that he would not in that time intend the verdict all, more if he had been absent from his fellows, but wilfully not find for either side: in this sense it was a misdemeanor against his oath, for his oath was truly to try the issue, which he could never do, that resolv'd not to confer with his fellows.

And in this sense it is the same with the case 34 E. 3, where twelve being sworn, and put together to treat of their verdict, one secretly withdrew himself, and went away, for which he was justly fined and imprison'd; and it differs not to withdraw from a mans duty, by departing from his fellows, and to withdraw from it, though he stay in the same room, and so is that book to be understood.

But if a man differ in judgment from his fellows for a day and a night, though his dissent may not be as reasonable as the opinion of the rest that agree, yet if his judgment be not satisfied, one disagreeing can be no more criminal than four or five disagreeing with the rest.

2. A juror would not agree with his fellows for two dayes, and being demanded by the Judges, if he would agree; said, he would first die in prison; whereupon he was committed, and the verdict of the eleven taken; but upon better advice the verdict of the eleven was quasht, and the juror discharg'd without fine, and the justices said, the way was to carry them in carts, until they agreed, and not by fining them; and as the Judges err'd in taking the verdict of eleven, so they did in imprisoning the twelfth; and this case makes strongly that the juror was not to be fined, who disagreed in judgment only.

[152] Much of the office of jurors, in order to their verdict, is ministerial, as not withdrawing from their fellows, after they are sworn, not withdrawing after challenge, and being tryed in before they take their oath; not receiving from either side evidence after their oath not given in Court, not eating and drinking before their verdict, refusing to give a verdict, and the like; wherein if they transgress, they are finable; but the verdict it self, when given, is not an act ministerial, but judicial, and according to the best of their judgment, for which they are not finable, nor to be punisht, but by attainnt.

3. The case of 7 R. 2, title Coronæ, Fitz. 108, was cite d, where upon acquittal of a common thief, the Judge said, the jury ought to be bound to his good behaviour, during his life: but saith the book, quere per quel ley, but that was only gratis dictum by the Judge, for no such thing was done, as binding them.

4. *Bradshaw and Salmons case* was urg'd, where a jury had given excessive damages upon a tryal in an action of covenant, and the Court of Star-Chamber gave damages to the complainant almost as high as the jury had given upon the tryal: but the jury, who gave the damages, were not question'd: though, saith the book, they might have been, because they receiv'd briefs from the plaintiff, for whom they gave damages, which was a misdemeanor; but the express book is, that the jury could not be punisht by information for the excessive damages, but only by attainnt, therefore not for their false verdict without other misdemeanor; which answers some other cases alledg'd.

Nor can any man shew (though it was said) that a jury was ever punisht upon an information, either in law, or in the Star-Chamber, where the charge was only for finding against their evidence, or giving an untrue verdict, unless imbracery, subordination, or the like, were joyn'd.

5. It was said, a perjury in facie Curie is punishable by the Judge; and such is it if jurors go against their evidence; perhaps a witness may be punished for perjury in facie Curie (which I will not maintain to be law), but a jury can never be so punished, because the evidence in Court is not binding evidence to a jury, as hath been shew'd.

[153] 6. Some records were cited, of fines pro concealamento; no doubt it is an article inquirable in everyoyer and terminer, and one jury may find it upon another.

7. *Braynes case* was urg'd, but the jurors were there fined for a manifest combination to delude the Court, by agreeing upon two verdicts, and concealing the latter, if the Court would be satisfied with the former.

8. *Wharton's case*, reported by two reporters, Yelverton saith, that the Judges, whereof Popham was one, and a Privy Counsellor, were very angry, and fined the jury for their verdict, and finding against direction.

In those Reports that pass under the name of Noy's, the same case is reported with this, that the Judges conceiv'd the jury had been unlawfully dealt with to give that verdict; which, if true, the fining was lawful, and the case therein reported, short by Yelverton.

9. *Wagstaff's case*, in the King's Bench lately, was the same with the present case; but by the record it is reasonable to think the jurors committed some fault besides going against their evidence, for they were unequally fined.

But however, all the Judges having, upon this return, resolved, that finding against the evidence in Court, or direction of the Court barely, is no sufficient cause to fine; the jury answers all these cases, if not answered before.

10. There remains *Southwell's case*, reported by Leonard; some cases out of the Court of Wards in *Lannoy's case*, reported by Serjeant Moore, f. 730, where jurors were sent to the Fleet, or threatened to be sent, for not finding offices according to direction of the Court.

1. An inquest of office is not subject to an attain.

2. It neither determines any mans right, nor doth any party put any tryal upon them.

3. They are only to find naked matter of fact, as the books are of 3 H. 7, f. 10 b. and 2 H. 4, f. 5 a. but principally an office for the King is in many cases, as necessary, as an entry for a common person, without which he can never come by, or try his right, nor can the King, without an office, know whether he hath a right to a ward, a mortmain, or the like; and as it is an injury to hinder a man from his entry, whereby his right may be tried, so it is not to find an office for the King, whereby his right may be tried, which concludes no man, but enables the King to a tryal of his right, and in truth is only a finding of matter of fact, and no more.

[154] Therefore perhaps it may be an offence, as of a witness refusing his testimony, not to find an office for the King, when clear proof is made of the matter of fact; but if proof be not made at all, or be altogether doubtful, or that the matter be matter of law, the inquest may find an ignoramus, which a jury, upon a tryal, can never do: but of this I shall say no more, it concerning not the case in question.

Presidents. That the Court of Common Pleas, upon Habeas Corpus, hath Discharg'd Persons Imprison'd by other Courts, upon the Insufficiency of the Return only, and not for Priviledge.

Sir Anthony Roper, committed by the High Commission Court discharg'd absolutely in the Common Pleas, as unlawfully committed and detain'd, without any mention of priviledge.

George Milton, imprisoned for contempt, scandalous words of the Court, and convicted of drunkenness; the causes resolv'd insufficient, and therefore dimittitur à prisona, and the goaler discharg'd of him; but he gave bayl to attend the pleasure of the Court.

Elizabeth Ash committed by High Commission, pro lenocinio, in like manner discharg'd; the cause being insufficient to detain her in prison, or to hinder her from the priviledge of that Court, but no other mention of priviledge put in bayl.

Richard Hayes, for refusing to do penance, as injoyn'd, committed by the High Commission, the cause judg'd insufficient to commit, but gave bayl as before; he demanded a habeas corpus by reason of priviledge.

But it is to be observ'd, that priviledge lies only where a man is officer of the Court, or hath a prior suit in the Common Pleas depending, and is elsewhere arrested

to answer, and molested, that he cannot prosecute his suit, he is then privileged justly, and without wrong, because his prosecutor elsewhere might have sued, if he pleas'd, in the Common Pleas.

[155] All privilege is either for officers, clerks, or attorneys of the Court, not to be sued elsewhere; or for persons impleading or impleaded, having priority of suit in the Common Pleas, arrested or sued in other jurisdictions; or for the menial servants of such officers.

These privileges are not detrimental to any, because whoever hath occasion to sue an officer, or any other, having priority of suit as before, is not restrained to sue them in the Common Pleas, but is restrained from suing elsewhere. And this is the true privilege of the Court.

And the way of enjoying this privilege, was, by writs of privilege to supersede the proceeding of other Courts against such, who had the privilege of the Common Pleas, as is yet ordinary in the cases of attorneys, officers, and clerks.

And in such writs the cause of privilege is mentioned, and as to their menial servants, if not true, may be travers'd. As 22 H. 6, 38. Debt was brought against baron and feme, and a supersedeas out of the Chancery, was cast for the baron, as menial servant to an officer of Chancery; whereupon the plaintiff said it was contain'd in the writ that the husband was menial servant to R. J. del Chancery, whereas he was not his menial servant, and thereupon issue was taken. But quere of the officers appearing of record in the Court may be travers'd.

Hence it follows, though proceeding in other Courts against a person privileged in Banco, might be superseded, yet it was when the matter proceeded upon in such Courts, might as well be prosecuted in the Common Bench; but if a privileged person, in Banco, were sued in the Ecclesiastical Courts, or before the High Commission, or constable and marshal, for things whereof the Common Pleas had no cognizance, they could not supersede that proceeding by privilege. And this was the ancient reason and course of privilege.

1. Another way of privilege, by reason of suit depending in a Superior Court, is, when a person impleading or impleaded, as in the Common Bench, is after arrested in a civil action or plaint in London, or elsewhere, and by habeas corpus is brought to the Common Pleas, and the arrest and cause return'd; if it appear to the Court, that the arrest in London was after the party ought to have had the privilege of the Common Pleas; he shall have his privilege allow'd, and be discharg'd of his arrest, and the party left to [156] prosecute his cause of action in London, in the Common Pleas, if he will.

2. If the cause of the imprisonment return'd, be a lawful cause, but which cannot be prosecuted in the Common Pleas, as felony, treason, or some cause wherein the High Commission, Admiralty, or other Court, had power to imprison lawfully, then the party imprison'd which did implead, or was impleaded in the Common Bench before such imprisonment, shall not be allow'd privilege, but ought to be remanded.

3. The third way is, when a man is brought by habeas corpus to the Court, and upon return of it, it appears to the Court, that he was against law imprison'd and detain'd, though there be no cause of privilege for him in this Court, he shall never be by the act of the Court remanded to his unlawful imprisonment, for then the Court should do an act of injustice in imprisoning him, de novo, against law, whereas the great charter is, *quod nullus libet homo imprisonetur nisi per legem terræ*; this is the present case, and this was the case upon all the presidents produc'd and many more that might be produc'd, where upon habeas corpus, many have been discharg'd and bail'd, though there was no cause of privilege in the case.

This appears plainly by many old books, if the reason of them be rightly taken, for insufficient causes are as no causes return'd; and to send a man back to prison for no cause return'd, seems unworthy of a Court.

If a man be impleaded by writ in the Common Pleas, and is after arrested in London upon a plaint, there upon a habeas corpus he shall have privilege in the Common Pleas, if the writ, upon which he is impleaded, bear date before the arrest in London, and be return'd, although the plaintiff in the Common Pleas be nonsuit, essoin'd, or will not appear, and consequently the case of privilege at an end before the corpus cum causa return'd; but if the first writ be not return'd, there is no record in Court that there is such a defendant.

The like where a man brought debt, in Banco, and after for the same debt arrested

the defendant in London, and became nonsuit in Banco; yet the defendant, upon a habeas corpus, had his privilege, because he had cause of privilege at the time of the arrest, 14 H. 7, 6, Br. Privilege, n. 19.

The like case 9 E. 4, where a man appear'd in Banco, by a cepi corpus, and found mainprise, and had a day to appear in Court, and before his day was arrested in London, and brought a corpus cum causa in Banco Regis, at which day the plaintiff be-[157]-came nonsuit, yet he was discharg'd from the serjeant at London, because his arrest there was after his arrest in Banco, and consequently unlawful, 9 E. 4, f. 47, Br. Privilege, 24, and a man cannot be imprison'd at the same time lawfully in two Courts.

The Court of Kings Bench cannot pretend to the only discharging of prisoners upon habeas corpus, unless in case of privilege, for the Chancery may do it without question.

And the same book is, that the Common Pleas or Exchequer may do it, if upon return of the habeas corpus, it appear the imprisonment is against law.

An habeas corpus may be had out of the Kings Bench or Chancery, though there be no privilege, &c. or in the Court of Common Pleas, or Exchequer, for any officer or priviledg'd person there; upon which writ the gaoler must return by whom he was committed, and the cause of his imprisonment; and if it appeareth that his imprisonment be just and lawful, he shall be remanded to the former gaoler; but if it shall appear to the Court that he was imprisoned against the law of the land, they ought, by force of this statute, to deliver him; if it be doubtful and under consideration, he may be bayl'd.—The Kings Bench may bayl, if they please, in all cases; but the Common Bench must remand, if the cause of the imprisonment return'd be just.

The writ de homine replegiando, is as well returnable in the Common Pleas, as in the Kings Bench.

All prohibitions for ineroaching jurisdiction issue as well out of the Common Pleas as Kings Bench.

Quashing the order of commitment upon a certiorari, which the Kings Bench may do, but not the Common Pleas, is not material in this case.

1. The prisoner is to be discharg'd or remanded barely upon the return, and nothing else, whether in the Kings Bench, or Common Pleas.

2. Should the Kings Bench have the order of commitment certified and quash'd, before the return of the habeas corpus, or after, what will it avail the prisoners; they cannot plead nul tiel record, in the one case or the other.

3. In all the presidents shew'd in the Common Pleas, or in any that can be shew'd in the King's Bench, upon discharging the prisoner by habeas corpus, nothing can be shew'd of quashing the orders or decrees of that Court, that made the wrong commitment.

[158] 4. It is manifest, where the Kings Bench hath, upon habeas corpus, discharg'd a prisoner committed by the Chancery, the person hath been again re-committed for the same cause by the Chancery, and re-deliver'd by the Kings Bench; but no quashing of the Chancery order for commitment ever heard of.

5. In such cases of re-commitment, the party hath other and proper remedy besides a new habeas corpus; of which I shall not speak now.

6. It is known, that if a man recover in assise, and after in a re-disseisin, if the first judgment be revers'd in the assise, the judgment in the re-disseisin is also revers'd. So if a man recover in waste, and damages given, for which debt is brought (especially if the first judgment be revers'd before execution) it destroys the process for the damages in debt, though by several originals. But it may be said, that in a writ of error in this kind, the foundation is destroy'd, and no such record is left.

But as to that in *Drury's case*, 8 Rep. an outlawry issued, and process of capias upon the outlawry, the sheriff return'd, non est inventus; and the same day the party came into Court and demanded oyer of the exigent, which was the warrant of the outlawry; and shew'd the exigent to be altogether uncertain and insufficient, and consequently the outlawry depending upon it to be null. And the Court gave judgment accordingly, though the record of the outlawry were never revers'd by error; which differs not from this case, where the order of commitment is judicially declar'd illegal, though not quasht or revers'd by error, and consequently whatever depends upon it, as the fine and commitment doth, and the outlawry in the former case was more the Kings interest, than the fine in this.